CHAPTER 28 Judicial Activism

The concept of judicial activism originated and developed in the USA. This term was first coined in 1947 by Arthur Schlesinger Jr., an American historian and educator.[1]

In India, the doctrine of judicial activism was introduced in the mid-1970s. Justice V.R. Krishna Iyer, Justice P.N. Bhagwati, Justice O. Chinnappa Reddy and Justice D.A. Desai laid the foundations of judicial activism in the country.

MEANING OF JUDICIAL ACTIVISM

Judicial activism denotes the proactive role played by the judiciary in the protection of the rights of citizens and in the promotion of justice in the society. In other words, it implies the assertive role played by the judiciary to force the other two organs of the government (legislature and executive) to discharge their constitutional duties.

Judicial activism is also known as "judicial dynamism". It is the antithesis of "judicial restraint", which means the self-control exercised by the judiciary.

Judicial activism is defined in the following way:

1. "Judicial activism is a way of exercising judicial power that motivates judges to depart from normally practised strict adherence to judicial precedent in favour of progressive and new social policies. It is commonly marked by decision calling for social engineering, and occasionally these decisions represent intrusion in the legislative and executive matters".[2]

2. "Judicial activism is the practice in the judiciary of protecting or expanding individual rights through decisions that depart from established precedent, or are independent of, or in opposition to supposed constitutional or legislation intent".[3]

3. "Judicial activism can be defined as the process of law-making by judges. It means an active interpretation of existing legislation by a judge, made with a view to enhance the utility of that legislation for social betterment. Judicial activism is different from judicial pessimism which means interpretation of existing provisions of law, without an attempt to enhance its beneficial aspects".[3a]

4. "Judicial activism is a philosophy of judicial decision-making whereby judges allow their personal views about public policy, among other factors, to guide their decisions".[3b]

5. "Judicial activism is a procedure to evolve new principles, concepts, maxims, formulae and relief to do justice or to expand the standing of the litigant and open the door of courts for needy or to entertain litigation affecting the entire society or a section of it".[3c]

ASPECTS OF JUDICIAL ACTIVISM

There are two major aspects of judicial activism followed by the Indian Judiciary:[3d]

(i) The first comes in the form of various directions issued by the courts to the government authorities for protecting the rights of citizens and fulfilment of a course of public interest. The cases Public Interest Litigation (PIL) fall under this aspect of judicial activism.